

fraudulently converts to his own use or benefit, or the use or benefit of any other person, the property or any part thereof or any proceeds thereof, shall be guilty of a misdemeanour, and be liable on conviction to penal servitude for a term not exceeding seven years, or to imprisonment, with or without hard labour, for a term not exceeding two years.

(2.) Nothing in this section shall apply to or affect any trustee on any express trust created by a deed or will, or any mortgagee of any property, real or personal, in respect of any act done by the trustee or mortgagee in relation to the property comprised in or affected by any such trust or mortgage.

2.—(1.) Sections seventy-five and seventy-six of the Larceny Act, 1861, are hereby repealed. Repeal, construction, commencement, short title.

(2.) This Act shall have effect as part of the Larceny Act, 1861, and section one of this Act shall be deemed to be substituted for sections seventy-five and seventy-six of that Act, and references in any enactment to those sections shall be construed as references to section one of this Act.

(3.) This Act shall come into operation on the first day of January nineteen hundred and two.

(4.) This Act may be cited as the Larceny Act, 1901, and the Larceny Act, 1861, the Larceny Act, 1868, the Larceny Act, 1896, and this Act may be cited together as the Larceny Acts, 1861 to 1901. 24 & 25 Vict. c. 96.
31 & 32 Vict. c. 116.
59 & 60 Vict. c. 52.

CHAPTER 11.

An Act for enabling local authorities to empower School Boards temporarily to carry on certain schools; and for sanctioning certain School Board expenses.

[9th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) Where a school board has at any time during the twelve months immediately preceding the thirty-first day of July one thousand nine hundred and one maintained out of the school fund any school or class to the maintenance of which the school fund is not lawfully applicable, the council of the county or county borough within which the school or class is held, or, with the sanction of the Board of Education, any other local authority under the Technical Instruction Acts, 1889 and 1891, for the district within which the school or class is held, may empower the school board to carry on for the period of one year from that day the work of the school or class to such extent and on such terms as may be agreed on between such council or local authority Temporary provision for certain school board schools.

and the school board, and to apply to the maintenance of the school or class such sum out of the school fund as the council or local authority may sanction.

(2.) Where any expenses incurred by a school board in respect of any such school or class before the said day are sanctioned by the Local Government Board, the legality of those expenses shall not be questioned in any court.

Short title.

2. This Act may be cited as the Education Act, 1901.

CHAPTER 12.

An Act to provide for raising Money for the service of the year ending the thirty-first day of March nineteen hundred and two. [17th August 1901.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland, in Parliament assembled, towards raising the necessary supplies granted to Your Majesty, have resolved that sums not exceeding sixty million pounds be raised in manner provided by this Act; and do therefore most humbly beseech Your Majesty that it may be enacted; and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Borrowing
for purpose
of supply for
year 1901-2.

51 & 52 Vict.
c. 2.

1.—(1.) Any money required for raising the supply granted to His Majesty for the service of the year ending on the thirty-first day of March nineteen hundred and two may be raised up to an amount not exceeding sixty million pounds by means of the creation of two and three-quarter per cent. consolidated stock within the meaning of the National Debt (Conversion) Act, 1888, and the Treasury may, by warrant addressed to the Bank of England, direct the creation of such amounts of that stock as may be required for the purpose.

(2.) A full quarterly dividend shall be payable on any stock issued under this Act as from the sixth day of April nineteen hundred and one.

(3.) Stock created for the purposes of this Act shall be consolidated with like stock previously created under the National Debt (Conversion) Act, 1888, and may be issued at such times, in such amounts and subject to such conditions, as to payment of deposits and instalments and the issue of scrip certificates carrying dividend and otherwise, as the Treasury direct, and any directions given by the Treasury before the passing of this Act with respect to those matters are hereby confirmed.